

## 25STCP04700 25STCP04700

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-25

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Case Number: 25STCP04700 Hearing Date: August 25, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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PATRICIA STEPHENSON, et al.,

Petitioner(s),

vs.

CALIFORNIA

DEPARTMENT OF INDUSTRIAL RELATIONS, DIVISION OF LABOR STANDARDS ENFORCEMENT,

Respondent(s).

Case No.:

25STCP04700

Hearing Date:

August 25, 2026

[TENTATIVE]

ORDER RE: MOTION FOR RECONSIDERATION; REQUEST FOR CLARIFICATION, STAY OF  
ENTRY OF JUDGMENT, AND LEAVE TO AMEND PETITION

Petitioner Patricia Stephenson ("Petitioner") seeks

reconsideration of the Court's June 9, 2026 order sustaining respondent California

Department of Industrial Relations, Division of Labor Standards Enforcement

("Respondent") and real party Marius Denisiu's ("RPI") demurrer to the petition.

Petitioner also requests clarification of that order, a stay of entry of

judgment, and leave to amend her petition.

The motion is denied.

I.

Procedural History

On December 4, 2025, Petitioner and petitioner Executive

Network Enterprises, Inc. ("ENE") filed their petition against Respondent,

naming RPI as a real party. A proof of service filed December 18, 2025 shows

Petitioner and ENE served the petition on Respondent by electronic service on

December 15, 2025. On January 16, 2026, RPI filed his Answer to the petition.

On March 3, 2026, Respondent demurred to the petition. On

March 9, 2026, RPI joined Respondent's demurrer. On March 19, 2026, Respondent

filed an amended demurrer and RPI filed an amended joinder.

On March 26, 2026, the court denied Petitioner and ENE's ex parte application for a temporary restraining order and order to show cause re: preliminary injunction.

On April 2, 2026, RPI filed a memorandum in support of Respondent's demurrer. On April 22, 2026, Stephenson<sup>[1]</sup> untimely filed her opposition to the demurrer, which was due April 17, 2026. On April 24, 2026, Stephenson filed an unauthorized supplemental opposition. On April 27, 2026, Respondent filed its reply, which was due April 23, 2026.

On April 30, 2026, the court heard the demurrer. The court considered the untimely opposition (and, accordingly, the late reply), but not the accompanying 96 pages of unauthenticated exhibits, which even if authenticated would not be admissible for demurrer. (Marshall, supra, 37 Cal.App.4th at 1403.) The court continued the demurrer for supplemental briefing on a single issue only: whether an alter ego finding means that Stephenson is bound by the merits determination against ENE and was obligated to appeal. The court ordered five-page cross-briefs, due May 29, 2026.

On May 28, 2026, RPI filed his supplemental brief. RPI's brief included an unauthorized one-page declaration by counsel purporting to verify all facts stated within the briefing, as well as a request for judicial notice. On May 29, 2026, Stephenson and Respondent filed their supplemental

briefs. Stephenson's eight-page brief exceeded the court's five-page limit.

Stephenson also filed an unauthorized seven-page declaration and 49 pages of unauthenticated exhibits. On June 2, 2026, Stephenson filed an unauthorized 12-page response brief and request for judicial notice.

On June 9, 2026, the Court heard the demurrer and took the matter under submission. Later the same day, the Court sustained the demurrer without leave to amend.

On June 24, 2026, the Court entered Judgment of Dismissal.

On June 25, 2026, Petitioner filed the instant motion. On June 26, 2026, the Court denied Petitioner's ex parte application for an order shortening time on the instant motion. The Court explained in its order that the Court had already entered judgment in this case, and therefore the Court no longer has authority to grant the relief Petitioner requests.

On July 22, 2026, RPI filed his opposition to the instant motion. On August 12, 2026, Respondent filed its opposition. On August 18, 2026, Petitioner filed her reply.

II.

Discussion

"It is elementary that where a tribunal has jurisdiction over the parties and the subject matter, the

jurisdiction continues until a final judgment is entered.” (Riley v.

Superior Court In and For Los Angeles County (1957) 49 Cal.2d 305, 309,

citing Kennedy v. Industrial Acc. Comm., 50 Cal.App. 184, 191.) Once an

action has been dismissed, “[a] superior court thereafter has no subject matter

jurisdiction to grant relief other than costs and fees as appropriate.” (Hagan

Engineering, Inc. v. Mills (2003) 115 Cal.App.4th 1004; Harris v.

Billings (1993) 16 Cal.App.4th 1396, 1405; Aetna Casualty &

Surety Co. v. Humboldt Loaders, Inc. (1988) 202 Cal.App.3d 921,

931; Datner v. Mann Theatres Corp. (1983) 145 Cal.App.3d 768,

770; Associated Convalescent Enterprises v. Carl Marks & Co., Inc. (1973)

33 Cal.App.3d 116, 120; Egly v. Superior Court (1970) 6 Cal.App.3d

476, 483.)

The Court sustained Respondent and RPI’s demurrer on June 9,

2026. The Court entered a Judgment of Dismissal on June 24, 2026. Since the

time of entry of judgment, this Court has lacked jurisdiction to grant relief

other than costs and fees.

In reply, Petitioner suggests, without clarity, that the

Court could construe her June 25, 2026 filing (made under Code of Civil

Procedure section 1008, subdivision (a)) as something akin to a motion for new

trial. The Court is not persuaded. This new characterization is offered for the

first time in reply and is therefore improper. Regardless, Petitioner cites no authority establishing that a mislabeled motion for reconsideration filed after entry of judgment can be recast in a way that revives jurisdiction.

Petitioner did not file the instant motion until June 25, 2026. Accordingly, the Court lacks jurisdiction to hear it. Separately, Petitioner's request to stay entry of judgment is moot.

III.

Conclusion

The Court lacks jurisdiction to hear the instant motion. The motion is DENIED.

Date: August 25, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email

to the court at [email protected] with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Non-attorney Stephenson and corporation ENE were not represented during the briefings and initial hearing on Respondent’s demurrer. Stephenson’s filed papers only purport to oppose on her own behalf.